

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW
CONSTITUTIONAL CONCEPT

1. SOVEREIGNTY:

In every given human society, there is always a supreme entity whose provisions or dictates are final. This particular entity is the embodiment of sovereignty in that society. In the pre – colonial times, it was usually the Gods of the land (in the South) or the provisions of the Holy Q’uran (in the North). In contemporary Great Britain, the Parliament is regarded as supreme while in Nigeria, the Constitution is regarded as supreme.

While Britain enjoys sovereignty of Parliament, Nigeria have supremacy/sovereignty of the Constitution. The concept of constitutional sovereignty/supremacy implies that the constitution is sovereign/supreme. For example, **section 1 (1) of the Nigeria Constitution** provides: “This Constitution is supreme and its provisions shall have binding force on the authorities and persons throughout the Federal Republic of Nigeria.” In **subsection 3** it is also provided: “If any other law is inconsistent with the provisions of this Constitution, this Constitution shall prevail, and that other law shall, to the extent of the inconsistency, be void.” In **section 14(2) (a)**, it is declared that: “sovereignty belongs to the people of Nigeria from whom government through this Constitution derives all its powers and authority.”

Ese Malami in his text book, the Nigerian Constitutional Law, opined that: “whenever there is supremacy of the constitution, the people are supreme and their will which is the constitution is supreme and binding on all authorities and persons.”

Elaborating further, he said that it means that:

1. The people are the sovereign entity and the final authority in the country.
2. The constitution as made by the people is the supreme law of the land and it is superior to all other laws and regulation in Nigeria.
3. The powers of the parliament or legislature are defined and limited by the constitution.
4. The constitution overrides every other law, decision and conduct and any law or act contrary or violates the provisions of the constitution is null and void and of no effect whatsoever.
5. The government has to submit itself for assessment by the people at general election. The people, if satisfied will review the mandate of the government and let it remain or if dissatisfied, will withdraw its mandate so that the government will quit power.

Read **A.G Bendel v AG Fedration and 22 ors (1981) All N.L.R 85 SC, Doherty v Balewa (1963) 1 WLR 949 and Tony Momoh v Senate of the National Assembly & Ors (1981) N.C.L.R 21**

2. SEPERATION OF POWER

The doctrine of separation of power emanated from John Locke as a result of the conditions existing in seventeenth century England. It was his view that it was more convenient to confer legislative and executive powers on different organs of government. Moreover, if the law maker were left to execute the law, as a human being, he might exempt himself from the observance of the law. Montesquieu, a French jurist, in developing this theory of separation of powers has argued that in every government, there should be three types of powers: the legislative, the executive and judicial powers. Montesquieu posits that it is requisite that the government be construed so that one man need not be afraid of another. But when the legislative and executive powers are united in the same person, there can be no liberty, because apprehensions may arise lest the same person or senate should enact tyrannical laws, and execute them in a tyrannical manner. Again, there is no liberty if the judicial power is not separated from the legislative and the executive.

Where judicial power is joined with the legislative, the life and liberty of the subject would be exposed to arbitrary control; for the judge would then be the legislator. Where judicial power is joined with executive power, the judge might behave with violence and oppression. The height of abuse of power will be witnessed where the same man or the same body, whether of the nobles or of the people are to exercise those three powers; that of enacting the laws, that of executing public resolutions and of trying the cause of individual.

Following the principles of separation of powers, the 1999 Constitution provides for the powers of the executive, legislative and judiciary is section 4 to 6.

A. LEGISLATIVE

One of the most important duties of the legislators is the making of laws in the legislature for the welfare of the populace. **Section 4 of the Constitution** provides for this important assignment and the power is vested on the National Assembly which shall consist of a Senate and a House of representatives.

By virtue of section 4 (2) and (3) of the Constitution, unless where otherwise is provided in the Constitution, the National Assembly have power, to the exclusion of the Houses of Assembly of the state, to make laws for the peace, order and good government of the Federation or any part thereof with respect to any matter includes in the Exclusive Legislative List provide under section 251 of the Constitution.

According to section 6 (4) of the Constitution, the legislative powers of a state of the federation are vested in the House of Assembly of the State.

Both the National Assembly and State Houses of Assembly have power to make laws in matters contained in the Concurrent List set out in the first column of Part II of the second Schedule to the Constitution to the extent prescribed in the second column opposite thereto.

In order to reduce conflict between the National Assembly and State Houses of Assembly, the Constitution determines to what extent each level of government can go in this common area of jurisdiction which affects the interest of the common man in the society. The Constitution made effort to avoid conflict between the National Assembly and Houses of Assembly of States. However, where conflict occurs, section 4 (5) provides that if any law enacted by House of Assembly of a State is inconsistent with any law validly made by the National Assembly, the law made by the National

Assembly shall prevail, and the other law shall to the extent of the inconsistent be void.

This leads to a brief discussion of doctrine of covering the field. This arise in a situation where both the National Assembly and House of Assembly of State enact law on the same subject over which they have power to do and not matter of inconsistency. Where Federal law covers the field of a subject matter, there is nothing left for the House of Assembly of States to legislate. What matters here is the intention of the Federal legislators (National Assembly) as expressed in the statute. If the National Assembly expresses its enactment in a clear, exhaustive and exclusive manner governing the particular conduct or matter, that will be the end of State enactment in the area. Example is section 296 of the Penal Code and section 9 of Robbery and Firearms Act No. 47 of 1970. The two laws have been held not to be in conflict or inconsistent and exist side by side.¹

In strict compliance with the intendment of the doctrine of separation of power, section 4(8) of the Constitution provides that save as otherwise provided by the Constitution, the exercise of legislative powers by the Legislatures in Nigeria shall be subject to the jurisdiction of courts of law and of judicial tribunals established by law, and accordingly, the National Assembly or a House of Assembly shall not enact any law that oust or purports to oust the jurisdiction of a court of or of a judicial tribunal established by law.

B. EXECUTIVE

By virtue of section 5 (1) and (2) of the Constitution, the executive powers of the Federation and the States are vested in the President and Governors respectively. The Governor shall not exercise his/her power in such manner to impede or prejudice the exercise of the executive powers of the Federation or to endanger the continuance of a Federal Government in Nigeria.

Notwithstanding the above position, there are instances where the Legislature performs an executive function. An instance is where the Legislature exercises its investigative powers in accordance with sections 82 and 120 of the Constitution for National Assembly and House of Assembly respectively. Thus, the Legislature can investigate the acts of the executive especially in a matter of public interest.

Paramount on how interwoven the executive and legislative powers are, is section 12(1) of the Constitution which provides that no treaty between the Federation of Nigeria and any other country shall have the force of law except to the extent to which any such treaty has been enacted into law by the National Assembly. This means that although the President has the duty to negotiate treaties, such treaties do not become effective until the National Assembly approves the treaties. Another measure of co-operation between the executive and the legislature in the act of public administration is seen in some various sections² of the Constitution provide that the (National Assembly) has to approve the nominations of the President for the post of the Justices of the Supreme Court and the President of the Court of Appeal, members of Federal

¹ Attorney –General of Benue State v Morgan Oketa Ogwu & Another (1983) Unreported FCA/K/43/82 judgment delivered in Kaduna on 17/02/83 – Karibi-Whyte J.C.A

² See sections 135(2), 139(2), 141(1), 157(4), 211(1)& (2) and 213 (5)

Commissions and Councils, Special Advisers, Ministers and Ambassadors. In the States, the Houses of Assembly also has to confirm the nominations by State Governors for the post of Commissioners, the Chief Judges and the Chairman and members of the State Commissions and Councils as provided by section 173(2), 179 and 235(1) of the Constitution.

Note: the area in which Parliamentary system of government is remarkably different from Presidential system of government is the fact that the head of the executive arm of the government (with the majority of the Ministers) is usually a member of the Legislature.

However, under Presidential system of government, powers can be interwoven but a member of an arm of government ceases to be such once he/she is elected or appointed into another arm. Example, if a member of the Legislature is elected the President/Vice president, a Governor/Deputy Governor or appointed as a Minister or Commissioner, he automatically loses his/her seat according to sections 64(1)(d) and (e) and 103(1)(d) and (e) of the Constitution.

The most potent argument for the doctrine of separation of powers is that there is no rigid separation of powers between the Executive and Legislature under Presidential system of government but separated institutions sharing powers in some spheres for the welfare of people of Nigeria and a member of the Legislature should not be a member of the Executive.

C. JUDICIAL POWERS

By virtue of section 6 of the Constitution, the judicial power of the Federation is vested in the Courts established for the Federation of Nigeria. The Courts here include the Federal and State Courts as are established or may be established from time to time. The core duty of the Court is to interpret the law.

The common debate whether judges made law or not is settled in favor of the former. In the process of interpreting the law, the judges tell us what the law is, should be and has been. For instance, as far back as 1896, it was held under English Common Law that public servants hold their appointments at the pleasure of the State and could be dismissed or relieved of the appointment at any time without complying with any rules or regulation.³ Applauding, the Supreme Court in *Shitta Bey v Federal Public Service Commission*⁴ broke the shackles of the such imported English feudalism in English Common Law when she posits that as a watchdog of the citizens –the public servant in this case- under a written Constitution, it has a duty to uphold the provisions of the Constitution. In fact, the Public Service Commission is a creature of the Constitution. Consequently, the Supreme Court compelled the Commission to perform its duties and observe the rules and regulations made thereunder. Thus, the feudal concept of law imported into this country with English Common Law was jettisoned by the Supreme Court through interpretation of the Constitution of the country without legislating any law by an act of the National Assembly.

³ Dunn v The Queen (1896) 1 Q.B. 116

⁴ (1981) 1 S.C. 40

Another instance is the recent decision of court in **Ukeje v Ukeje** where the *Igbo* custom which disinherits women were held unconstitutional and that became a law without an enactment.

The three major arms of government in Nigeria namely: Legislative, Executive and Judiciary does not operate in watertight compartments under Nigerian system of government. It would appear that our Constitution has been able to successfully produce a government of 'separated' institutions sharing power in some spheres rather than one under a rigid separation of powers. Under the Presidential system of government in Nigeria, the executive and judiciary can safely be said to be part of the law-making process. Also, the legislature performs some administrative function which strictly should have been an Executive duty.

In addition, sections 132 and 170 of the Constitution vest in the National Assembly and House of Assembly respectively, power to remove the President, Vice President, the Governor or Deputy Governors from office in the event of a gross misconduct. In comparison, in Britain, which operate parliamentary system of government, it is the House of Lords, which is Britain's highest court of law that has powers of impeachment. The Legislature sometimes intervenes on various issues affecting the welfare of citizens as a quasi-judicial body.

The three organs must operate in perfect co-operation for good administration to ensue.

3. MINISTERIAL RESPONSIBILITY:

The ministerial responsibilities in Nigeria are the duties or functions assigned to the ministers of the federal cabinet by the President. The President may assign any business of the government, including the administration of any department, to the Vice-President or any minister. (See section 5 (1) (a) of the Constitution). There was 28 ministries in Nigeria managed by 44 Ministers in the last administration headed by President Mohammed Buhari. Each ministry is headed by a Permanent Secretary who reports to a minister. The Constitution requires that there must be at least one cabinet member from each of the 36 states in Nigeria and one from FCT. See section 14 (3) of the Constitution on Federal character and proviso to section 147 of the Constitution. Thus, there are thirty-seven (37) Ministers in number, plus President Bola Ahmed Tinubu, as the Minister of Petroleum (as at 2023).

Furthermore, the Ministers directly report to the President. And the President has the power to hire (though by the rectification of the legislative arm of the government of the nation) and fire any of them. Generally see section 147 of the Constitution.

All the Ministers are members of Federal Executive Council (FEC). The Federal Executive Council (FEC) is the cabinet of the Federal Republic of Nigeria and is part of the executive branch of the Government of Nigeria. The council's role, as written in the Ministers' Statutory Powers and Duties Act, is to serve as an advisory body to the President of Nigeria, who serves as the FEC's chairman. Each ministry responsible for some aspect of providing government services, as well as a number of parastatals (government-owned corporations).

4. RULE OF LAW

The concept of Rule of Law is a constitutional concept that has gained recognition comprising part of the conceptualization of civilized human coexistence. Thus, the concept has universal validity. Rule of law simply put, means that everything must be done according to law. This means that all government department and functionaries must be able to justify their actions, any affected person may always resort to the Court of law for appropriate remedy(ies).

Rule of law equally means that government should be conducted within a framework of recognized rules and principles which restrict discretionary power. Even where one has discretion to exercise, such discretion must be exercised in accordance to law. This is to avoid abuse and arbitrariness. The rules of constitutional law are rules for restricting the wide powers which Acts or Laws may confer freely on Ministers or Commissioners or other authorities. The end of Dark Ages in Europe coincided with or was as a result of increased consciousness that the powers of the rulers should be moderated by subjection to law. This was not easily accepted by the rulers and gave rise to Constitutional conflicts of different degrees between the kings and the people. In some cases, it resulted to civil war or revolutions. The general urge was that the powers of the sovereign should be withheld down and be made subject to laws made by the people's representatives.

The rule of law demands that the Court should prevent any abuse of discretionary power. Faced with the fact that the legislature in most developing countries like Nigeria freely confers discretionary powers with little regard to dangers of abuse, the Courts in Nigeria have attempted to strike a balance between the needs of fair and efficient administration and the need to protect the citizens against arbitrary government. Thus, the given to the Judiciary under the Constitution are sufficiently great to make it the effective watchdog of the liberties of the individual. Section 6 (6)(b) of the Constitution provides that the judicial powers shall extend to all matters between persons or between government or authority and any person in Nigeria and to all action and proceedings relating thereto, for the determination of any person as to the civil rights and obligations of that person.

Without the protection offered by the Courts through the rule of law, perhaps, all kinds of abuses would be possible and the rule of arbitrary power would have successfully replaced the rule of law.

Thirdly, the rule of law means equality of the citizens before the law. The same court has jurisdiction over all citizens. There are no special courts for special people or official. Rule of law entails equal subjection of all classes of individuals to the ordinary law of the land administered by ordinary law courts

Fourthly, another aspect of rule of law provide for in the Nigerian Constitution is that no citizen can be punished except for some legally defined crime. In this vein, section 33(8) of the Constitution provides that no person shall be held guilty of a criminal offence on account of any act or omission that did not, at the time it took place, constitute such offence and no penalty shall be imposed for any criminal offence heavier than the penalty in force at the time the offence was committed. Section 4 (9) of the Constitution specifically provides that notwithstanding the provisions of section 4, the National Assembly or a House of Assembly shall not, in relation to any

criminal offence whatsoever, have power to make any law which shall have retrospective effect.⁵

Finally, rule of law is the mainspring of Constitutional law and it is provided for in the Nigeria Constitution. It is summed up by an English law theorist, A. V. Dicey who propounded that rule of law has three major facets: supremacy of the law, equality before the law and independent of the judiciary that enunciates the general principles of rights and obligations of citizens. Nigeria Constitution is tailored with rule of law. Read its preamble, section 1 which provide for bindingness of the Constitution on all authorities and persons throughout the federal Republic of Nigeria and supremacy of the Constitution that we have considered above.

P.S.: This lecture note was prepared by **Dr. I. L. Agbo (Mrs.)**, while **Adv. Chimdike** and **Faithful** only highlighted certain parts to enhance clarity and ease of understanding.

⁵ Aoko v Fagbemi & ors (1961) 1 All N.L.R 406

Adv. Chimdike et Faithful